

FORM F49
(RULE 14-7 (21))

Court File No.: _____

Court Registry: _____

In the Supreme Court of British Columbia

Claimant: _____

Respondent: _____

NOTICE OF INTENTION TO CALL ADVERSE PARTY AS A WITNESS

[Rule 21-1 of the Supreme Court Family Rules applies to all forms.]

To:

[name and address]

TAKE NOTICE that _____
[party(ies)]

require(s) you to appear at the trial of this family law case at _____ on
[time of day]

_____ at _____
[dd mmm yyyy] [place of trial]

for the purpose of being called as a witness under Rule 14-7 (20), (21) or (22) of the Supreme Court Family Rules.

Date: _____
[dd mmm yyyy]

Signature of ☐ party requiring appearance
☐ lawyer for party requiring appearance

[type or print name]

Rule 14-7 (25) states:

- (25) If a person called as a witness in accordance with subrule (21) or (22) refuses or neglects to attend at the trial, to be sworn or to affirm, to answer a proper question put to the person or to produce a document that the person is required to produce, the court may do one or more of the following:
- (a) grant judgment in favour of the party who called the witness;
 - (b) adjourn the trial;
 - (c) make an order as to costs;
 - (d) make any other order it considers will further the object of these Supreme Court Family Rules.